NewsBank inc.

U.S. immigrants sue over Trump's end of deportation protection - More than a dozen states from Maine to California have sued the administration

September 19, 2017 | Denver Post, The: Web Edition Articles (CO)
Author: Amy Taxin | Section: Trump Administration | 523 Words
OpenURL Link

IRVINE, Calif. — Six immigrants brought to the United States as children who became teachers, graduate students and a lawyer sued the Trump administration on Monday over its decision to end a program shielding them from deportation.

The lawsuit filed in federal court in San Francisco alleged the move violated the constitutional rights of immigrants who lack legal status and provided information about themselves to the U.S. government so they could participate in the program.

"The consequences are potentially catastrophic," said Jesse Gabriel, a lawyer for the plaintiffs. "These people can very powerfully and very clearly communicate the extent to which they organized their lives around this program."

The lawsuit joins others filed over President Donald Trump's decision to end the Deferred Action for Childhood Arrivals program which has allowed nearly 800,000 immigrants to obtain work permits and deportation protection since 2012.

More than a dozen states from Maine to California have sued over the administration's decision to phase out the program, alleging similar constitutional violations. So has the University of California system.

The impact of Trump's decision directly weighs on plaintiffs' personal lives and decisions they made to advance their careers in the U.S.

Viridiana Chabolla, a 26-year-old law student at University of California Irvine, said she does not know how she would repay a loan she took out to cover living costs or how she would afford books or food if her protection from the program known as DACA is rescinded.

"I imagined in the years to come I'd be able to get a job and would be able to pay it back," said Chabolla, whose parents brought her illegally to the U.S. from Mexico when she was 2. "I imagined I'd at least have DACA."

The lawsuit claimed that the administration's decision violates the immigrants' rights to equal protection and due process.

The plaintiffs — who are from Mexico and Thailand — include teachers, a medical student and 34-year-old lawyer Dulce Garcia, who recently signed a lease for an office and hired employees believing she could stay and work in the U.S. under the program, said Gabriel, an attorney for the law firm Gibson, Dunn & Crutcher.

Trump's announcement on Sept. 5 came after 10 Republican attorneys general threatened to sue in an attempt to halt the program. Under Trump's plan, those already enrolled remain covered until their two-year work permits expire, and some renewals are being allowed. But there will be no new applications.

Department of Justice spokesman Devin O'Malley blamed the Obama administration for starting the program and said the agency will defend Trump's decision.

"It was the previous administration's arbitrary circumvention of Congress that got us to this point," he said. "The Department of Justice looks forward to defending this Administration's position and restoring respect for the rule of law."

Immigrant advocates praise the program for protecting immigrants who were raised and educated in the U.S. despite their lack of legal immigration papers. The program's opponents criticize it as too broad and said major changes to immigration laws need to go through Congress and cannot be enacted by the U.S. president alone.

___

This story has been corrected to show that one plaintiff is a lawyer.

Copyright (c) 2017 The Denver Post Corp.

- **Citation (apa Style)**
  Taxin, A. (2017, September 19). U.S. immigrants sue over Trump's end of deportation protection - More than a dozen states from Maine to California have sued the administration. *Denver Post, The: Web Edition Articles (CO)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/1670833B41ED02F0.